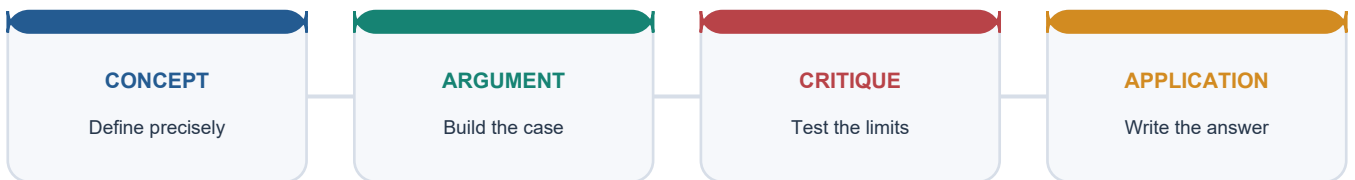


SOLVED PRACTICE WORKBOOK

Salient Features of the Indian Constitution - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

PRACTICE WORKBOOK

This section contains exactly **32 original MCQs/drills** before the reproduced PYQ block. Questions 25-32 provide synthesis and remedial control.

BASIC MCQS / REMEDIATION

Rotation and coverage

- Original objective count: **32**.
- Correct-option sequence: ABCDABCDABCDABCDABCDABCDABCDABCD.
- Formats include definition, statements, source matching, application, close-option distinction, case identification and synthesis.

Q1. Which description best captures a salient constitutional feature?

- A. A system-level characteristic produced by interacting provisions, institutions, values and practice
- B. A single Article considered without context
- C. Any political ideal mentioned in public debate
- D. A closed list identical to the basic-structure doctrine

Answer: A.

- **A - Correct.** This identifies the architectural level at which a feature operates and allows several provisions to combine in one design.
- **B - Incorrect.** A provision may evidence a feature, but federalism or parliamentary responsibility cannot be reduced to one Article.
- **C - Incorrect.** Political ideals matter only when connected to constitutional text, institutions or practice; publicity alone does not make a feature.
- **D - Incorrect.** Basic structure limits amendment, whereas salient features are a broader teaching classification with only partial overlap.

Examiner trap: The trap is category collapse: provision, value, feature and basic-structure element are related but not interchangeable.

Q2. With reference to the Constitution as adopted in 1949, which statement is correct?

- A. It contained 470 Articles, 25 Parts and 12 Schedules
- B. It contained a Preamble, 395 Articles, 22 Parts and 8 Schedules
- C. It contained 395 Articles, 25 Parts and 8 Schedules
- D. It contained 448 Articles, 22 Parts and 12 Schedules

Answer: B.

- **A - Incorrect.** The approximately 470-Article figure is a later textbook snapshot, not the original adopted structure.
- **B - Correct.** These are the stable historical counts for the Constitution adopted in November 1949.
- **C - Incorrect.** This option incorrectly imports the later twenty-five-Part structure into the original text.
- **D - Incorrect.** Neither 448 Articles nor twelve Schedules describes the Constitution's original adopted form.

Examiner trap: Original counts are date-specific; never mix the 1949 baseline with later Parts or Schedules.

Q3. Why is an unqualified present-day total of constitutional Articles unsafe?

- A. Because amendments may change Schedules but never Articles
- B. Because the Constitution ceased numbering Articles after 1950
- C. Because inserted, omitted and renumbered provisions produce different counting conventions
- D. Because only the Supreme Court may count constitutional provisions

Answer: C.

- **A - Incorrect.** Articles have repeatedly been inserted, omitted or altered, so amendment is precisely why a simple invariant claim is unsafe.
- **B - Incorrect.** Article numbering continues throughout the constitutional text; commencement did not end the numbering scheme.
- **C - Correct.** This explains why dated source snapshots differ even when they refer to the same constitutional document.
- **D - Incorrect.** Counting methodology is a bibliographic issue, not an exclusive judicial power.

Examiner trap: The examiner tests whether a dated textbook snapshot has been turned into an eternal constitutional fact.

Q4. Which source contributed the largest block of structural and administrative material to the Constitution?

- A. The Constitution of France
- B. The Constitution of Japan
- C. The Irish Constitution
- D. The Government of India Act, 1935

Answer: D.

- **A - Incorrect.** France is conventionally linked to republicanism and liberty-equality-fraternity, not the main administrative framework.
- **B - Incorrect.** Japan is associated especially with the phrase 'procedure established by law'.
- **C - Incorrect.** Ireland influenced DPSP and specified electoral or nomination devices, but not the bulk of administrative detail.
- **D - Correct.** The 1935 Act supplied federal, gubernatorial, judicial, service, emergency and administrative structures later democratically transformed.

Examiner trap: Do not mistake the most important colonial structural source for the source of popular sovereignty or universal franchise.

Q5. Which set of source-feature associations is correctly matched?

- A. Australia-Concurrent List; Canada-strong-Centre federation; Ireland-DPSP
- B. Canada-Concurrent List; Ireland-Fundamental Rights; USSR-amendment procedure
- C. Britain-procedure established by law; Japan-parliamentary government; France-DPSP
- D. United States-single citizenship; South Africa-emergency suspension; Australia-Fundamental Duties

Answer: A.

- **A - Correct.** All three are standard source associations and each belongs to a different constitutional design problem.
- **B - Incorrect.** The Concurrent List is associated with Australia, Fundamental Rights with the United States and amendment procedure with South Africa.
- **C - Incorrect.** Procedure established by law is associated with Japan, parliamentary government with Britain and DPSP with Ireland.

- **D - Incorrect.** Single citizenship is linked to Britain, emergency suspension to Weimar Germany and Duties to the former USSR.

Examiner trap: The distractors deliberately exchange countries within the standard borrowings table; test each pair independently.

Q6. Which proposition best answers the 'bag of borrowings' criticism?

- A. Borrowing is irrelevant because no foreign device entered the Constitution
- B. The framers selected, adapted and rejected devices, producing a new combination for Indian conditions
- C. Every borrowed institution operates exactly as in its source country
- D. Originality requires inventing every constitutional mechanism from nothing

Answer: B.

- **A - Incorrect.** The source record expressly acknowledges extensive borrowing; denial is historically indefensible.
- **B - Correct.** Adaptation, rejection and recombination explain why genealogy does not equal mechanical copying.
- **C - Incorrect.** India rejected British parliamentary sovereignty, US presidentialism and dual citizenship, showing that operational identity was not copied.
- **D - Incorrect.** Constitutional design normally learns from prior experience; novelty lies in fit and combination as well as invention.

Examiner trap: A good answer must prove adaptation through at least one accepted device and one rejected feature.

Q7. Which sequence correctly states India's graduated constitutional-change routes?

- A. Referendum; judicial decree; unanimous State approval
- B. Simple majority under Article 368; presidential veto; joint sitting
- C. Simple-majority matters outside Article 368; Article 368 special majority; special majority plus at least half the States for specified matters
- D. Every change by the same special majority without State participation

Answer: C.

- **A - Incorrect.** India has no general constitutional referendum route, and courts do not enact amendments.
- **B - Incorrect.** Simple-majority constitutional changes are outside Article 368, while no joint sitting resolves an amendment deadlock.
- **C - Correct.** This is the complete three-track spectrum and correctly limits State ratification to specified federal matters.
- **D - Incorrect.** The proviso to Article 368 expressly creates a higher ratification threshold for a defined class of provisions.

Examiner trap: The common error is to place every constitutional change inside Article 368 and then require ratification for all of them.

Q8. Which is NOT a universal requirement for passing a Constitution Amendment Bill under Article 368?

- A. A majority of the total membership of each House
- B. Two-thirds of members present and voting in each House
- C. Separate passage by both Houses
- D. Approval through a nationwide referendum

Answer: D.

- **A - Incorrect.** This is one limb of the special majority required in each House.
- **B - Incorrect.** This is the second limb of the Article 368 special-majority formula.
- **C - Incorrect.** Each House must pass the Bill separately because there is no joint-sitting mechanism.

- **D - Correct.** The Constitution does not prescribe a nationwide referendum for Article 368 amendments.

Examiner trap: Referendum language sounds democratically attractive but is not part of India's Article 368 procedure.

Q9. Which cluster most strongly establishes the federal character of the Constitution?

- A. Two governments, constitutional division of powers, partial rigidity and an independent judicial umpire
- B. Single citizenship, integrated judiciary, appointed Governors and emergency powers
- C. Collective responsibility, ministerial membership and lower-House dissolution
- D. One Constitution, one government and unrestricted parliamentary power

Answer: A.

- **A - Correct.** These elements distribute entrenched authority territorially and provide adjudication of competence disputes.
- **B - Incorrect.** This cluster chiefly lists integrative or centralising features within the federal framework.
- **C - Incorrect.** These are attributes of parliamentary government rather than proof of a federal division.
- **D - Incorrect.** India has Union and State governments, and Parliament is constitutionally limited rather than unrestricted.

Examiner trap: The question asks for the federal core, not every important feature of Indian government.

Q10. Article 1 describes India as:

- A. A federation created by an agreement among sovereign States
- B. A Union of States
- C. A confederation whose units may secede
- D. A unitary State without constitutionally protected State fields

Answer: B.

- **A - Incorrect.** The Constitution did not arise from a compact among pre-existing sovereign States.
- **B - Correct.** This is the exact constitutional expression and supports the no-secession understanding.
- **C - Incorrect.** No constitutional right of secession follows from India's territorial organisation.
- **D - Incorrect.** The Seventh Schedule and State governments make this absolute unitary description false.

Examiner trap: Do not replace the exact words 'Union of States' with a scholar's label such as quasi-federal.

Q11. Which set contains only centralising or integrative features of Indian federalism?

- A. Dual governments, divided competence and bicameralism
- B. State List, written supremacy and judicial umpire
- C. Single citizenship, Union residuary power, integrated judiciary and All-India Services
- D. State ratification, elected State governments and constitutional lists

Answer: C.

- **A - Incorrect.** These are principally federal indicators, though their operation may vary.
- **B - Incorrect.** The State List and judicial umpire sustain territorial power-sharing rather than centralisation alone.
- **C - Correct.** Each item strengthens common national or Union capacity within the federal structure.
- **D - Incorrect.** These devices entrench State participation and autonomy rather than forming a purely centralising cluster.

Examiner trap: UPSC often mixes federal and unitary indicators in one option; classify each item before counting.

Q12. Constitutional asymmetry is best understood as:

- A. A temporary replacement of the Constitution during war
- B. A State's right to withdraw from the Union
- C. The abolition of equal citizenship
- D. Differentiated constitutional arrangements used to accommodate distinct territorial or community conditions

Answer: D.

- **A - Incorrect.** Emergency operation is a separate constitutional mode and is not the definition of asymmetry.
- **B - Incorrect.** Article 1's Union design carries no State right to secede.
- **C - Incorrect.** Common citizenship can coexist with differentiated regional institutions.
- **D - Correct.** This captures asymmetry as an accommodation device within one constitutional order.

Examiner trap: Different treatment is not automatically unconstitutional inequality; first ask whether the differentiation is textually grounded and accommodation-oriented.

Q13. At the Union level, collective responsibility makes the Council of Ministers answerable primarily to the:

- A. Lok Sabha
- B. Rajya Sabha
- C. Supreme Court
- D. Election Commission

Answer: A.

- **A - Correct.** Article 75 ties collective responsibility to the House of the People, whose confidence sustains the ministry.
- **B - Incorrect.** The Rajya Sabha scrutinises government but does not determine the Union ministry's collective survival.
- **C - Incorrect.** Courts review legality; they do not confer or withdraw parliamentary confidence.
- **D - Incorrect.** The Election Commission administers elections and is outside the confidence relationship.

Examiner trap: Do not confuse bicameral legislative scrutiny with the lower House's confidence function.

Q14. In a parliamentary system, 'fusion' most accurately means:

- A. Legislatures and courts are the same institution
- B. The political executive is drawn from and remains responsible to the legislature
- C. The constitutional head personally exercises all executive power
- D. Judicial review is incompatible with responsible government

Answer: B.

- **A - Incorrect.** Courts remain institutionally distinct even though constitutional functions can overlap.
- **B - Correct.** Ministerial membership and collective responsibility connect the executive to the legislature.
- **C - Incorrect.** The President or Governor normally operates through ministerial aid and advice, subject to bounded exceptions.
- **D - Incorrect.** India combines parliamentary responsibility with judicial review under constitutional supremacy.

Examiner trap: Fusion concerns executive-legislative personnel and confidence, not total merger of all organs.

Q15. In the Indian constitutional order, ultimate legal supremacy belongs to the:

- A. Council of Ministers
- B. Parliament exercising any majority
- C. Constitution
- D. Supreme Court acting without jurisdictional limits

Answer: C.

- **A - Incorrect.** The Council governs through authority conferred and limited by the Constitution.
- **B - Incorrect.** Even constituent power under Article 368 remains subject to constitutional procedure and basic structure.
- **C - Correct.** All organs derive power from and remain bounded by the supreme Constitution.
- **D - Incorrect.** Judicial review enforces constitutional supremacy; it does not create an unlimited judicial sovereign.

Examiner trap: The false choice is Parliament versus Court; the correct frame is powers allocated under a supreme Constitution.

Q16. Which statement incorrectly describes separation of powers in India?

- A. Core governmental functions are differentiated
- B. Overlap can be constitutionally authorised
- C. Reciprocal checks restrain concentration
- D. The Constitution establishes strict and complete organ isolation

Answer: D.

- **A - Incorrect.** Legislation, administration and adjudication have distinguishable institutional centres.
- **B - Incorrect.** Ordinance power, delegated legislation and judicial rule-making show controlled overlap.
- **C - Incorrect.** Confidence, financial control, review and removal processes create checks across institutions.
- **D - Correct.** Ram Jawaya states that the Constitution does not contemplate rigid separation in the strict sense.

Examiner trap: Absolute language is the clue: Indian separation is functional, not watertight.

Q17. Article 50 directs the State to:

- A. Separate the judiciary from the executive in the public services of the State
- B. Create a Finance Commission every five years
- C. Proclaim a National Emergency
- D. Establish Hindi as the national language

Answer: A.

- **A - Correct.** This Directive Principle is a textual marker of functional judicial separation.
- **B - Incorrect.** Article 280, not Article 50, concerns the Finance Commission.
- **C - Incorrect.** Article 352 governs National Emergency proclamations.
- **D - Incorrect.** The Constitution contains an official-language framework but declares no national language.

Examiner trap: Article 50 is a DPSP: it is constitutionally important without being a directly enforceable Fundamental Right.

Q18. The President's and Governor's ordinance powers are located respectively in:

- A. Articles 32 and 226
- B. Articles 123 and 213
- C. Articles 121 and 211
- D. Articles 352 and 356

Answer: B.

- **A - Incorrect.** These Articles concern constitutional remedies and High Court writ jurisdiction.
- **B - Correct.** The pair identifies temporary executive law-making powers subject to constitutional conditions.
- **C - Incorrect.** These provisions restrict legislative discussion of judicial conduct.
- **D - Incorrect.** These Articles govern National Emergency and President's Rule, not ordinances.

Examiner trap: The trap is to treat ordinance power as proof of strict separation; it is evidence of authorised functional overlap.

Q19. Which case most directly states that the Indian Constitution does not contemplate rigid separation of powers?

- A. S.R. Bommai v. Union of India
- B. Minerva Mills v. Union of India
- C. Ram Jawaya Kapur v. State of Punjab
- D. Union of India v. Rajendra N. Shah

Answer: C.

- **A - Incorrect.** S.R. Bommai chiefly controls Article 356 review and secular-federal principles.
- **B - Incorrect.** Minerva Mills centrally protects limited amendment and Parts III-IV harmony.
- **C - Correct.** Ram Jawaya (1955) is the direct authority for functional rather than rigid separation.
- **D - Incorrect.** Rajendra N. Shah concerns federal ratification and Part IX-B's State-co-operative operation.

Examiner trap: Later basic-structure cases protect separation, but Ram Jawaya supplies the direct no-rigid-separation proposition.

Q20. Judicial independence does NOT mean:

- A. Protection against improper political pressure
- B. Institutional safeguards for impartial adjudication
- C. Authority to review unconstitutional action
- D. Freedom of courts from the Constitution, jurisdiction and reasoned accountability

Answer: D.

- **A - Incorrect.** Insulation from improper influence is central to adjudicatory independence.
- **B - Incorrect.** Tenure, removal and service-condition protections support impartial decision-making.
- **C - Incorrect.** Review is a constitutionally assigned function that depends on an independent judiciary.
- **D - Correct.** Courts remain creatures and guardians of the Constitution, not authorities above it.

Examiner trap: Independence is functional protection, not judicial sovereignty or exemption from constitutional limits.

Q21. Which statement correctly captures the relationship among Fundamental Rights, DPSP and Fundamental Duties?

- A. They differ in legal status but jointly connect liberty, welfare and civic responsibility
- B. All three are directly enforceable by writ
- C. DPSP automatically override every Fundamental Right
- D. Duties apply only to governments and never to citizens

Answer: A.

- **A - Correct.** Part III rights are enforceable, Part IV directs governance and Part IV-A articulates citizens' duties; constitutional harmony links their purposes.
- **B - Incorrect.** Article 37 expressly makes DPSP non-justiciable, and Duties do not themselves create a writ remedy.
- **C - Incorrect.** Minerva Mills rejects destruction of the Parts III-IV balance in either direction.
- **D - Incorrect.** Article 51A addresses Fundamental Duties of citizens.

Examiner trap: The examiner tests both difference and relationship: neither flatten all three into rights nor isolate them as unrelated lists.

Q22. Which case is centrally associated with harmony and balance between Parts III and IV?

- A. Ram Jawaya Kapur
- B. Minerva Mills
- C. S.R. Bommai
- D. Navtej Singh Johar

Answer: B.

- **A - Incorrect.** Ram Jawaya addresses functional separation and executive power, not the Parts III-IV balance.
- **B - Correct.** Minerva Mills (1980) treats harmony between Fundamental Rights and Directive Principles as constitutionally central.
- **C - Incorrect.** S.R. Bommai is primarily associated here with secularism and review of Article 356.
- **D - Incorrect.** Navtej Singh Johar is used for dignity and constitutional morality, not this specific structural balance.

Examiner trap: Do not confuse the case that protects rights-DPSP harmony with cases used for separation, emergency review or dignity.

Q23. Which statement about the Preamble words 'Socialist', 'Secular' and 'Integrity' is correct?

- A. All three appeared in the original 1949 text
- B. They were inserted by the 44th Amendment
- C. They were inserted by the 42nd Amendment Act, 1976
- D. They were inserted with Parts IX and IX-A in 1992

Answer: C.

- **A - Incorrect.** The original Preamble did not contain these three added expressions.
- **B - Incorrect.** The 44th Amendment repaired parts of the emergency settlement but did not add these Preamble words.
- **C - Correct.** The 42nd Amendment inserted 'Socialist', 'Secular' and 'Integrity'.
- **D - Incorrect.** The 73rd and 74th Amendments constitutionalised rural and urban local government.

Examiner trap: Distinguish the date of adding the words from the earlier constitutional presence of equality, conscience and welfare commitments.

Q24. Indian secularism is best described as:

- A. An established religion with toleration of minorities
- B. A constitutional ban on every State interaction with religion
- C. Majority religious preference subject only to elections
- D. Equal citizenship and freedom of conscience combined with principled, constitutionally limited State engagement

Answer: D.

- **A - Incorrect.** The Constitution establishes no State religion.
- **B - Incorrect.** Regulation, reform and equal protection make an absolute non-engagement formula inaccurate.
- **C - Incorrect.** Democratic majority cannot displace equality, liberty of conscience or minority protections.
- **D - Correct.** This formulation captures the Indian positive-secular approach without treating State action as unlimited.

Examiner trap: The false binary is theocracy versus an absolute wall; India's model permits engagement for equality and reform under constitutional limits.

Q25. Universal adult franchise chiefly constitutionalised:

- A. Equal political membership from the beginning of the Republic
- B. Union control over State legislative fields
- C. A hereditary qualification for public office
- D. Judicial appointment by popular election

Answer: A.

- **A - Correct.** The Constitution trusted adult citizens with equal voting status despite social and economic inequality.
- **B - Incorrect.** Federal legislative competence is allocated separately and is not created by franchise.
- **C - Incorrect.** Republican and democratic government rejects hereditary political membership.
- **D - Incorrect.** Judges are not chosen through universal adult suffrage.

Examiner trap: Do not reduce franchise to election machinery; its constitutional significance is equal citizenship and political agency.

Q26. Which statement about citizenship is correct?

- A. India constitutionally creates separate Union and State citizenships
- B. India has single citizenship within a federal polity, subject to limited lawful residence or domicile distinctions
- C. Single citizenship abolishes State governments
- D. Only citizens by birth may hold every constitutional office

Answer: B.

- **A - Incorrect.** The Constitution provides Indian citizenship rather than a US-style dual citizenship structure.
- **B - Correct.** This states both the integrating rule and the necessary qualification against false absolutes.
- **C - Incorrect.** Territorial governments retain constitutional existence and fields despite common citizenship.
- **D - Incorrect.** Eligibility rules differ by office, and citizenship by birth is not a universal constitutional requirement.

Examiner trap: One citizenship does not mean one level of government or the disappearance of every State-linked qualification.

Q27. Which statement about independent constitutional bodies is most accurate?

- A. Every constitutional body has identical appointment and removal rules
- B. Charged expenditure protects every constitutional body in exactly the same manner
- C. Their safeguards and reporting designs differ according to function, even though all derive status from the Constitution
- D. The Finance Commission is a permanent executive department

Answer: C.

- **A - Incorrect.** The Election Commission, CAG, Public Service Commissions and Finance Commission have distinct constitutional designs.
- **B - Incorrect.** Financial insulation is body-specific and cannot be generalised from one institution to all.
- **C - Correct.** This avoids homogenisation while recognising the common constitutional foundation.
- **D - Incorrect.** Article 280 provides periodic constitution of a Finance Commission, not a permanent department.

Examiner trap: Constitutional status is a source classification, not proof of identical safeguards or equal operational independence.

Q28. Which mapping of emergency provisions is correct?

- A. Article 352-President's Rule; Article 356-Financial Emergency; Article 360-National Emergency
- B. Article 352-Financial Emergency; Article 356-war; Article 360-State failure
- C. Article 352-armed rebellion only; Article 356-any policy disagreement; Article 360-budget deficit
- D. Article 352-war/external aggression/armed rebellion; Article 356-failure of State constitutional machinery; Article 360-financial stability or credit threat

Answer: D.

- **A - Incorrect.** This cyclically assigns each emergency to the wrong constitutional Article.
- **B - Incorrect.** War or external aggression belongs to Article 352, not Article 356.
- **C - Incorrect.** Article 352 also covers war and external aggression; Article 356 requires constitutional failure, and Article 360 uses a constitutional financial trigger.
- **D - Correct.** This correctly distinguishes all three emergency regimes and their principal triggers.

Examiner trap: Do not treat the three emergencies as interchangeable or infer that ordinary political disagreement satisfies Article 356.

Q29. Which statement correctly describes the constitutionalisation of local government?

- A. The 73rd and 74th Amendments inserted Parts IX and IX-A and the Eleventh and Twelfth Schedules
- B. The original 1950 Constitution contained Parts IX and IX-A in their present local-government form
- C. The 61st Amendment created Panchayats and Municipalities
- D. Local government is outside State involvement after constitutionalisation

Answer: A.

- **A - Correct.** The 1992 amendments created the constitutional rural and urban framework and their subject Schedules.
- **B - Incorrect.** The detailed third-tier scheme is a later addition, not an unchanged original feature.
- **C - Incorrect.** The 61st Amendment lowered voting age; it did not create Parts IX and IX-A.
- **D - Incorrect.** States remain central to legislation, devolution and implementation under the constitutional framework.

Examiner trap: Constitutional status should not be confused with automatic transfer of the three Fs in every State.

Q30. After Union of India v. Rajendra N. Shah (2021), which statement is correct?

- A. The Supreme Court invalidated the entire 97th Amendment
- B. Part IX-B cannot operate for State co-operative societies without the required ratification, while the multi-State field survives
- C. Article 19(1)(c) was deleted
- D. Article 43B ceased to exist

Answer: B.

- **A - Incorrect.** The judgment did not erase every component of the 97th Amendment.
- **B - Correct.** This states the federal ratification limit and preserves the judgment's multi-State distinction.
- **C - Incorrect.** The right-to-form-co-operatives addition was not removed by the decision.
- **D - Incorrect.** The Directive Principle promoting voluntary and democratic co-operatives remains in the text.

Examiner trap: The question turns on severability and legislative field: State co-operatives and multi-State co-operatives cannot be treated alike.

Q31. Which description of constitutional morality is most accurate?

- A. Whatever a current political majority considers moral
- B. A judge's personal ethical preference overriding text
- C. Fidelity to constitutional forms, procedures and values, anchored in text and structure
- D. A synonym for criminal morality enforced only through punishment

Answer: C.

- **A - Incorrect.** Majoritarian preference is precisely what constitutional restraints may need to discipline.
- **B - Incorrect.** Untethered personal morality would undermine the doctrine's constitutional legitimacy.
- **C - Correct.** This definition combines Ambedkar's institutional concern with the necessary text-and-structure limitation.
- **D - Incorrect.** Constitutional morality concerns the exercise of public power and democratic conduct, not merely penal law.

Examiner trap: The examiner may offer attractive moral language that lacks any constitutional anchor; reject it.

Q32. Which final assessment best captures the salient features of the Indian Constitution?

- A. They are seventeen unrelated facts that can be memorised separately
- B. They prove India is purely unitary because the Union is strong
- C. They establish that borrowing eliminated constitutional originality
- D. They form an evolving architecture balancing authority, restraint, representation and transformation

Answer: D.

- **A - Incorrect.** The features interact: federalism affects emergencies, parliamentary government affects separation, and rights interact with welfare.
- **B - Incorrect.** Strong Union devices coexist with constitutionally protected State fields and an independent judicial umpire.
- **C - Incorrect.** Selective adaptation and rejection created a distinct combination rather than erasing originality.
- **D - Correct.** This synthesis captures both the system's design and its dependence on institutions and constitutional morality.

Examiner trap: The final trap is list-learning: UPSC rewards relationships, tensions and qualifications, not an unconnected catalogue.

PYQS AND ANSWER PRACTICE

Provenance and key discipline

- Direct owned Mains PYQs: **2** - 2019 GS-II Q1 and 2021 GS-II Q1.
- Direct routed objective PYQs: **9** - 2018 Q40/Q45; 2020 Q7; 2021 Q87/Q90/Q94; 2023 Q33/Q84; 2024 Q74.
- Cross-owned federalism, citizenship and due-process PYQs are discussed in teaching but are not reproduced here as this topic's direct PYQs.
- Only 2024 Q74 carries an answer letter because the final official Set-A key is held locally. Every older objective item uses the required withholding sentence.

Direct Mains PYQ 1 - UPSC 2019 GS-II Q1

Question: "Do you think that the Constitution of India does not accept the principle of strict separation of powers rather it is based on the principle of 'checks and balance'? Explain." **10 marks - 150 words.**

Demand: Take a position, distinguish strict separation from checks and balances, and prove India's model through text, institutional overlap and doctrine.

Model answer: India does not create watertight compartments among legislature, executive and judiciary. Parliamentary government deliberately links the executive to the legislature, while the Constitution differentiates core functions and builds reciprocal checks.

Article 50 directs separation of the judiciary from the executive. Articles 121 and 211 restrict ordinary legislative discussion of judges' conduct; Articles 122 and 212 protect legislative procedure. Yet overlap is express: the executive promulgates ordinances under Articles 123 and 213, Parliament exercises constituent power under Article 368, and courts make procedural rules and punish contempt. Articles 13, 32 and 226 enable judicial review, while Article 75 makes the Council of Ministers collectively responsible to the Lok Sabha.

Ram Jawaya Kapur (1955) rejected rigid separation. *Kesavananda Bharati* (1973) and *Indira Nehru Gandhi v. Raj Narain* (1975) protect structural limits.

Thus India separates power to prevent concentration, but permits controlled overlap to sustain responsible government.

Answer spine: claim -> Articles 50/121/122/211/212 -> overlaps 123/213/368 -> review and responsibility -> cases -> qualified verdict.

Direct Mains PYQ 2 - UPSC 2021 GS-II Q1

Question: "'Constitutional Morality' is rooted in the Constitution itself and is founded on its essential facets. Explain the doctrine of 'Constitutional Morality' with the help of relevant judicial decisions." **10 marks - 150 words.**

Demand: Define the doctrine, identify its facets, illustrate each through constitutional text and decisions, and guard against subjectivity.

Model answer: Constitutional morality is fidelity to constitutional forms, procedures and values over personal, partisan or majoritarian preference. Ambedkar, drawing on George Grote, treated such respect as indispensable to democratic government.

Its essential facets are rule of law, limited and reasoned power, respect for institutional roles, liberty, equality, dignity, fraternity, minority protection and accountability. The Preamble and Articles 14, 15, 19, 21 and 25 provide textual anchors.

In *Navtej Singh Johar* (2018), constitutional morality protected dignity against exclusionary social morality. *Indian Young Lawyers Association* (2018) tested religious exclusion against equality, dignity and religious freedom. *Government of NCT of Delhi v. Union of India* (2018) connected constitutional morality with representative responsibility and federal balance.

The doctrine must remain anchored in text, structure and precedent; it is not a judge's private morality. Properly used, it converts constitutional authority into restrained, inclusive and publicly justified power.

Answer spine: definition -> textual facets -> three case illustrations -> subjectivity caution -> operative-ethic verdict.

Objective PYQ 1 - 2018 Prelims GS-I Q40

Question: Which one of the following reflects the most appropriate relationship between law and liberty?

A. If there are more laws, there is less liberty. B. If there are no laws, there is no liberty. C. If there is liberty, laws have to be made by the people. D. If laws are changed too often, liberty is in danger.

Answer withheld pending official UPSC key.

Concept control: Ordered liberty requires general, constitutionally limited law against private and public coercion; arbitrary law can itself destroy liberty. The locally held official paper verifies the wording, but no final official key is held locally.

Objective PYQ 2 - 2018 Prelims GS-I Q45

Question: Which of the following are regarded as the main features of the "Rule of Law"?

1. Limitation of powers
2. Equality before law
3. People's responsibility to the Government
4. Liberty and civil rights

A. 1 and 3 only B. 2 and 4 only C. 1, 2 and 4 only D. 1, 2, 3 and 4

Answer withheld pending official UPSC key.

Concept control: Limitation of public power, equality before law and protection of liberty are rule-of-law ideas; statement 3 reverses democratic accountability. No answer letter is promoted without a final official key.

Objective PYQ 3 - 2020 Prelims GS-I Q7

Question: A constitutional government by definition is a:

A. government by legislature B. popular government C. multi-party government D. limited government

Answer withheld pending official UPSC key.

Concept control: Elections, parties or legislatures may exist without effective limits; constitutional government is defined by legally bounded authority, accountability and remedies.

Objective PYQ 4 - 2021 Prelims GS-I Q87

Question: Which one of the following best defines the term "State"?

A. A community of persons permanently occupying a definite territory, independent of external control and possessing an organized government B. A politically organized people of a definite territory possessing an authority to govern them, maintain law and order, protect their natural rights and safeguard their means of sustenance C. A number of persons living in a definite territory for a very long time with their own culture, tradition and government D. A society permanently living in a definite territory with a central authority, an executive responsible to that authority and an independent judiciary

Answer withheld pending official UPSC key.

Concept control: The conventional elements are population, definite territory, organised government and sovereignty or independence from external control.

Objective PYQ 5 - 2021 Prelims GS-I Q90

Question: Which one of the following factors constitutes the best safeguard of liberty in a liberal democracy?

A. A committed judiciary B. Centralization of powers C. Elected government D. Separation of powers

Answer withheld pending official UPSC key.

Concept control: Elections confer authority but do not alone restrain it; division and checking of power protects liberty. "Committed judiciary" is not synonymous with judicial independence.

Objective PYQ 6 - 2021 Prelims GS-I Q94

Question: Constitutional government means:

A. a representative government of a nation with federal structure B. a government whose Head enjoys nominal powers C. a government whose Head enjoys real powers D. a government limited by the terms of the Constitution

Answer withheld pending official UPSC key.

Concept control: Representative, federal and executive-form descriptions are contingent; constitutionally limited authority is the defining principle.

Objective PYQ 7 - 2023 Prelims GS-I Q33

Question: Which one of the following statements best reflects the chief purpose of the Constitution of a country?

A. It determines the objective for the making of necessary laws. B. It enables the creation of political offices and a government. C. It defines and limits the powers of government. D. It secures social justice, social equality and social security.

Answer withheld pending official UPSC key.

Concept control: A Constitution creates institutions and pursues values, but its system-defining function is to constitute, distribute and limit governmental power.

Objective PYQ 8 - 2023 Prelims GS-I Q84

Question: Consider the following statements in respect of the National Flag of India according to the Flag Code of India, 2002:

Statement I: One of the standard sizes of the National Flag of India is 600 mm x 400 mm. Statement II: The ratio of the length to the height (width) of the Flag shall be 3 : 2.

A. Both Statement I and Statement II are correct and Statement II is the correct explanation for Statement I B. Both Statement I and Statement II are correct but Statement II is not the correct explanation for Statement I C. Statement I is correct but Statement II is incorrect D. Statement I is incorrect but Statement II is correct

Answer withheld pending official UPSC key.

Concept control: The official Flag Code lists a 3:2 ratio and nine standard sizes, including 900 x 600 mm but not 600 x 400 mm. Ratio conformity alone does not make a dimension a notified standard size.

Objective PYQ 9 - 2024 Prelims GS-I Q74

Question: Which of the following statements are correct about the Constitution of India?

1. Powers of the Municipalities are given in Part IX-A of the Constitution.
2. Emergency provisions are given in Part XVIII of the Constitution.
3. Provisions related to the amendment of the Constitution are given in Part XX of the Constitution.

A. 1 and 2 only B. 2 and 3 only C. 1 only D. 1, 2 and 3

Answer: D.

Official-key analysis: The locally held final official UPSC Set-A key records D. Part IX-A concerns Municipalities, Part XVIII Emergency Provisions and Part XX amendment of the Constitution.

Six original Mains questions with full prose solutions

Original Q1 - 10 marks / 150 words

Question: Why is the Indian Constitution better described as adapted rather than copied? Answer in 150 words.

Demand: Prove adaptation by showing selection, rejection and changed purpose.

Model answer: The Indian Constitution borrowed tested devices but did not reproduce any one foreign system. Britain supplied cabinet responsibility, rule of law, writs and single citizenship; India rejected hereditary monarchy and unlimited parliamentary sovereignty. The United States influenced Fundamental Rights and judicial review; India rejected presidential government, rigid separation and dual citizenship. Canada influenced a strong-Centre federation, while Ireland supplied Directive Principles and Australia the Concurrent List.

The Government of India Act, 1935 supplied much administrative machinery, including federal, gubernatorial, service and emergency provisions. Yet popular sovereignty, universal adult franchise, republican government, enforceable rights and responsible ministries changed the authority and purpose of that machinery.

Borrowing therefore describes genealogy; adaptation describes constitutional design. The residual caution is that inherited centralising and legalistic habits can survive. India's originality lies in a parliamentary federation combining rights, social directives, single citizenship, judicial review and democratic transformation.

Original Q2 - 10 marks / 150 words

Question: Explain why neither Parliament nor the judiciary is sovereign in India. Answer in 150 words.

Demand: Identify the powers and limits of both institutions under constitutional supremacy.

Model answer: India combines a powerful Parliament with judicial review, but legal supremacy belongs to the Constitution. Parliament legislates within distributed competence and may amend the Constitution under Article 368. Its laws remain subject to Fundamental Rights, federal limits and judicial review under Articles 13, 32 and 226. *Kesavananda Bharati* further prevents amendment from damaging the basic structure.

Courts can invalidate unconstitutional action and develop binding doctrine, but they exercise jurisdiction conferred by the Constitution. Judicial independence is not policy sovereignty; reasoned adjudication must remain anchored in text, structure and precedent.

The arrangement rejects both Westminster-style unlimited parliamentary sovereignty and an unlimited judicial government. Parliament retains democratic law-making and broad constituent capacity; courts protect constitutional boundaries and remedies. Each checks the other only through constitutionally assigned powers. Thus the Indian synthesis is constitutional supremacy enforced by institutions, not supremacy of either institution.

Original Q3 - 15 marks / 250 words

Question: "India is federal in structure but possesses a pronounced centralising capacity." Discuss. Answer in 250 words.

Demand: Weigh federal and centralising features and add cooperative and asymmetric operation.

Model answer: Indian federalism is a constitutional balance rather than a fixed label. Its federal structure rests on Union and State governments, a written and supreme Constitution, division of legislative competence, partial rigidity, bicameralism and an independent judiciary capable of resolving competence disputes.

The Union nevertheless possesses strong integrative capacity. Residuary legislative power lies with Parliament; Governors are appointed by the Union; single citizenship, an integrated judiciary and All-India Services create common legal-administrative institutions; and Articles 352, 356 and 360 permit specified crisis centralisation. Article 1's phrase "Union of States" indicates that the Union was not created by an agreement among sovereign States and that no State has a right to secede.

Operation adds two further dimensions. Cooperative federalism appears through institutions such as the Finance Commission, Inter-State Council and GST Council. Asymmetrical provisions, including the Fifth and Sixth Schedules

and Article 371 series, accommodate distinct histories and communities.

Strong Union capacity can coordinate national action and protect integrity, but Governor, fiscal and emergency practice can weaken State autonomy. Conversely, State power remains constitutionally real and judicially protected. India is therefore federal in structure, centralising in important instruments, cooperative in shared governance and asymmetric in accommodation.

Original Q4 - 15 marks / 250 words

Question: Examine the relationship among Fundamental Rights, Directive Principles and Fundamental Duties as a salient feature of the Constitution. Answer in 250 words.

Demand: Distinguish legal status, explain complementarity and identify limits.

Model answer: Parts III, IV and IV-A express three dimensions of constitutional citizenship. Fundamental Rights are justiciable guarantees that protect liberty, equality, dignity and political democracy. Article 32 provides a constitutional remedy, although rights remain subject to constitutionally valid restrictions.

Directive Principles are non-justiciable under Article 37 but fundamental in governance. They orient legislation and administration towards social and economic democracy and the welfare state. Fundamental Duties under Article 51A are non-justiciable civic obligations; ten were added by the 42nd Amendment and an eleventh by the 86th Amendment.

Their relationship is complementary rather than hierarchical. Rights prevent social transformation from becoming arbitrary; DPSP prevent liberty from being reduced to formal non-interference; Duties emphasise responsible citizenship and may guide interpretation or legislation. *Minerva Mills* (1980) treated harmony between Parts III and IV as central to the constitutional balance.

Limits remain essential. DPSP do not become directly enforceable merely because they are fundamental in governance, and Duties do not automatically create penal offences. Nor may welfare claims erase basic rights. The salient feature is therefore a differentiated but integrated architecture of freedom, welfare and civic responsibility.

Original Q5 - 20 marks / 250 words

Question: Analyse how the salient features of the Indian Constitution combine authority, restraint, representation and transformation. Answer in 250 words.

Demand: Build a whole-system synthesis, not a list.

Model answer: The Constitution is an integrated architecture rather than a catalogue of unrelated features.

Authority: A detailed written text creates Parliament, executives, courts and constitutional bodies. Federal lists distribute competence, while a parliamentary Council of Ministers supplies responsible government. Emergency provisions preserve exceptional crisis capacity.

Restraint: Constitutional supremacy, rule of law, Fundamental Rights and judicial review prevent authority from becoming unlimited. India rejects strict separation but uses functional differentiation, legislative responsibility and reciprocal checks. Article 368 enables change while the basic-structure doctrine protects constitutional identity.

Representation: Universal adult franchise established equal political membership from the beginning. Bicameralism, federal institutions, single citizenship, local government and asymmetrical arrangements combine common nationhood with territorial and social diversity.

Transformation: DPSP direct the State towards welfare and social-economic democracy; Duties express civic responsibility; secularism, equality and dignity challenge inherited hierarchy. The 73rd and 74th Amendments later deepened the third tier.

Each strength carries a risk: central capacity may become overreach, parliamentary fusion executive dominance, review judicial overreach, and detail legal complexity. Constitutional morality - text-linked restraint and fidelity to institutions - mediates these tensions. The Constitution's achievement is therefore a dynamic balance whose success depends on practice as well as design.

Original Q6 - 20 marks / 250 words

Question: A written Constitution does not by itself guarantee constitutionalism. Evaluate with reference to India's salient features. Answer in 250 words.

Demand: Distinguish text from effective limitation and evaluate enabling and constraining conditions.

Model answer: A Constitution is a fundamental framework of public power; constitutionalism exists only when that power is effectively limited, accountable and remediable. India's detailed written text is therefore necessary but insufficient.

The text creates strong safeguards. Federal distribution prevents complete territorial concentration. Parliamentary responsibility links executive survival to the elected lower House. Fundamental Rights, Articles 32 and 226, an independent judiciary and judicial review restrain arbitrary action. Constitutional bodies protect elections, audit, recruitment and fiscal federalism. Graduated amendment permits adaptation while basic structure preserves identity.

Yet formal design can be hollowed out. Party majorities may weaken legislative scrutiny; emergency and gubernatorial powers may centralise authority; institutional vacancies or appointment dependence may reduce autonomy; local bodies may lack functions, funds and functionaries; rights may be inaccessible without effective remedies. Even detailed provisions require conventions, administrative capacity and compliance.

Constitutional morality supplies the operating ethic: respect for procedure, institutional roles, minority rights, public reason and self-restraint. Courts must anchor it in text and structure to avoid subjectivity.

India therefore possesses a strong constitutional design, but constitutionalism is an achievement of institutions and citizens. The test is not whether rules exist, but whether power remains justified, reviewable and faithful to constitutional purpose.